

KAVANAUGH, J., dissenting

That longstanding and widespread congressional practice matters. When interpreting statutes, as the Court has often said, we “usually presume differences in language” convey “differences in meaning.” *Wisconsin Central*, 585 U. S., at 279 (internal quotation marks omitted). When Congress chooses distinct phrases to accomplish distinct purposes, and does so over and over again for decades, we may not lightly toss aside all of Congress’s careful handiwork. As Justice Scalia explained for the Court, “it is not our function” to “treat alike subjects that different Congresses have chosen to treat differently.” *West Virginia Univ. Hospitals, Inc. v. Casey*, 499 U. S. 83, 101 (1991); see *id.*, at 92.

And the Court has likewise stressed that we may not read “a specific concept into general words when precise language in other statutes reveals that Congress knew how to identify that concept.” Eskridge, *Interpreting Law*, at 415; see *University of Tex. Southwestern Medical Center v. Nassar*, 570 U. S. 338, 357 (2013); *Arlington Central School Dist. Bd. of Ed. v. Murphy*, 548 U. S. 291, 297–298 (2006); *Jama v. Immigration and Customs Enforcement*, 543 U. S. 335, 341–342 (2005); *Custis v. United States*, 511 U. S. 485, 491–493 (1994); *West Virginia Univ. Hospitals*, 499 U. S., at 99.

So it is here. As demonstrated by all of the statutes covering sexual orientation discrimination, Congress knows how to prohibit sexual orientation discrimination. So courts

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§ 30503(a)(1)(C) (authorizing Attorney General to assist state, local, and tribal investigations of crimes motivated by the victim’s “gender, sexual orientation”); §§ 41305(b)(1), (3) (requiring Attorney General to acquire data on crimes motivated by “gender . . . , sexual orientation,” but disclaiming any cause of action including one “based on discrimination due to sexual orientation”); 42 U. S. C. § 294e–1(b)(2) (conditioning funding on institution’s inclusion of persons of “different genders and sexual orientations”); see also United States Sentencing Commission, *Guidelines Manual* § 3A1.1(a) (Nov. 2018) (authorizing increased offense level if the crime was motivated by the victim’s “gender . . . or sexual orientation”); 2E Guide to Judiciary Policy § 320 (2019) (prohibiting judicial discrimination because of “sex, . . . sexual orientation”).